Report for an application for resource consent(s) under the Resource Management Act 1991

Auckland Council
Te Kaunihera o Tāmaki Makaurau

Non-complying activity – subdivision (s11)

1. Application description

Application number(s):	SUB60315119
Applicant:	Raymond & Desma Nicklin
Site address:	53b Remiger Road Puhoi
Legal description:	Amalgamated sites: Lot 8 DP 208981 – 57.4262 ha Lot 1 DP 179794- 24.1140ha Allotment 54A Parish of Puhoi- 21.6507ha Part Allotment 36 Parish of Puhoi- 37.0692ha Allotment 29,32,35 Parish of Puhoi and Part Allotment 28,30-31 Parish of Puhoi- 160.87 ha (Part-cancelled) Stand-alone site Lot 5 DP 198556 – 1.1705ha
Site area:	Lot 8 DP 208981 – 57.4262 ha Lot 1 DP 179794- 24.1140ha Allotment 54A Parish of Puhoi- 21.6507ha Part Allotment 36 Parish of Puhoi- 37.0692ha Allotment 29,32,35 Parish of Puhoi and Part Allotment 28,30-31 Parish of Puhoi- 229.2180 ha (Part-cancelled) Total size of amalgamated site: 302.3006ha Lot 5 DP 198556 – 1.1705ha

Auckland Unitary Plan (Operative in part)

Zoning and precinct:	Rural Production Zone
Overlays, controls, special features, designations, etc:	Overlays: Natural Resources: Significant Ecological Areas Overlay - SEA_T_2535, Terrestrial Natural Resources: Natural Stream Management Areas Overlay [rp] Natural Heritage: Outstanding Natural Landscapes Overlay [rcp/dp] - Area 46, Upper Puhoi Valley Controls: Macroinvertebrate Community Index – Native & Rural

Auckland Council District Plan (Rodney Section)

Zoning and precinct:	General Rural
Special features, overlays etc:	N/A

Locality Plan:



Figure 1: Application site and surrounds

2. The proposal, site and locality description

Proposal

The application seeks to undertake a rural subdivision to establish five additional rural-residential lots on the basis of protecting 53.43 ha of significant native bush in the property at 53b Remiger Road, Puhoi. A minor boundary change with an adjacent site is also proposed.

The application is described on pages 2-4 of the AEE and is summarised as:

- The subdivision of the site to create five new rural residential sites (Lots 1-5, ranging in size from 0.84ha to 2ha). These sites will obtain access from a new right of way to the west (Areas EA, EE etc),
- The remaining land will be retained in the balance lots, Lot 6 (97.15ha), Lot 7 (197.94ha), which will remain amalgamated through covenant.
- The balance lots will include the existing dwelling, bush covenants, remaining native bush and grazing land.

- Lot 8 is the proposed boundary change with Lot 5 DP 1985556, which adds a small area of land (approximately 700m^2) to the north west part of this title, an area less than 10% of the site area.
- Legally and physically protecting eight areas of significant native bush, Areas CP- CW (52.37ha) as shown on the scheme plan.
- In additional, riparian areas on the rural- residential lots are also proposed for protection. These are noted as Areas CO, CX, CY and Z on the scheme plan.
- The main vegetation is remnant podocarp broadleaf forest, and the Bush Quality Assessment Report (Cato Bolam Consultants, 1/9/2017) assesses the bush as meeting the significance criteria for native bush (Appendix 7B Guidelines for the Field Assessment of Native Bush Quality in Rodney District). Area CU is located within the Significant Ecological Areas (SEA) overlay under the AUP (OP). The other areas of bush identified for protection are not SEAs, but are assessed in the report to also meet sub-factors required to qualify as SEA.
- The majority of the bush is currently grazed, and it is proposed to be fenced off and protected by this application, along with ongoing animal pest and weed control. Riparian Planting is also proposed.
- All lots will obtain access from Remiger Road. This is formed to a metal standard.
- The new sites will be serviced by on- site means.

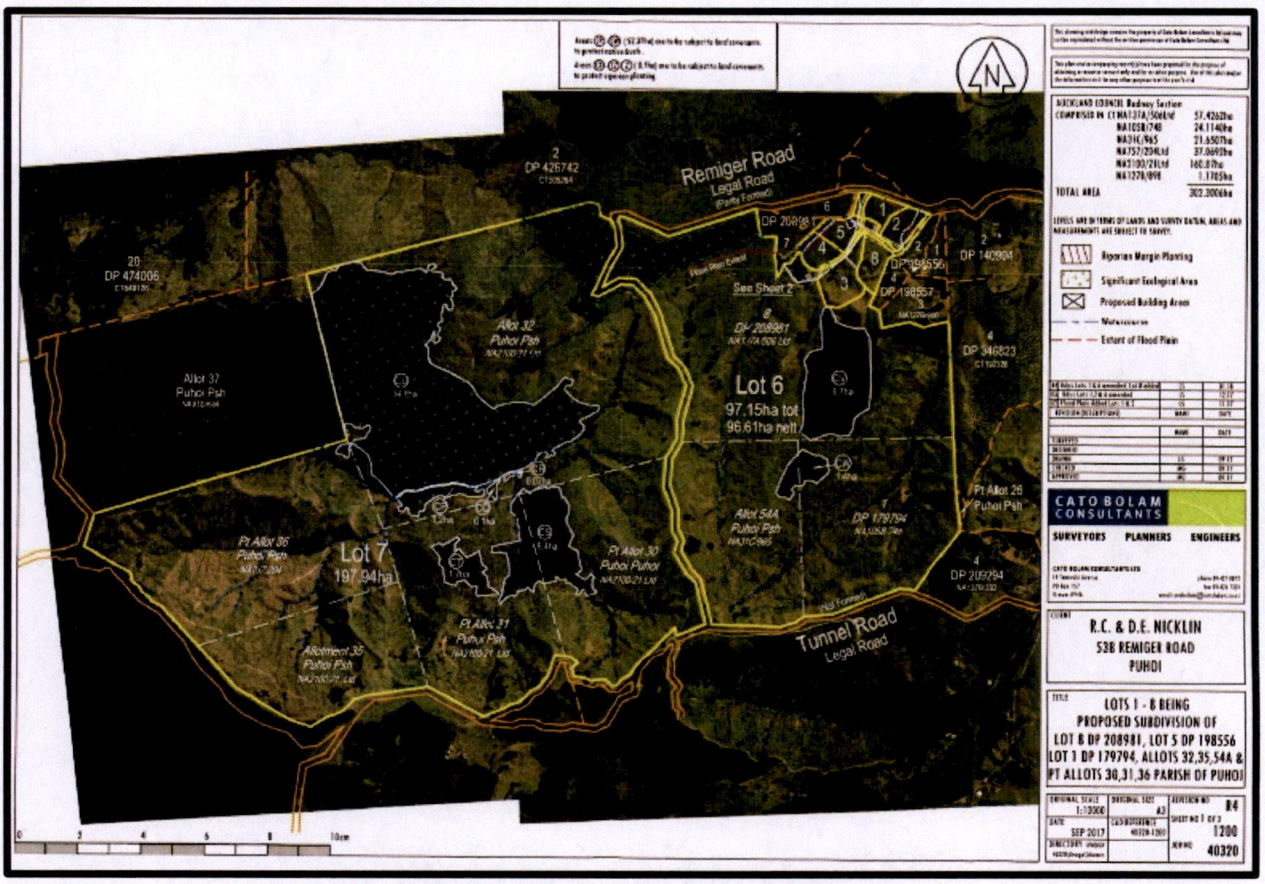


Figure 2: Proposed Scheme Plan

Site and surrounding environment description

The site in described on page 1 of the AEE. It is predominantly a pastoral site but also includes large tracts of bush. The site has a hilly topography, with flatter areas towards the east of the site, where the yards and farm accessory buildings are located. An existing dwelling is also located in the northeast of the site. The main access to the site is towards the western end of Remiger Road. In general, the land is hilly with numerous inlets, rivers and smaller waterways.

In this regard it is noted the site has a single dwelling, along with several rural accessory buildings. Surrounding the site are several rural-residential sites ranging from 1ha-2ha.



Figure 3: Existing dwelling

Remiger Road follows a tributary of the Puhoi River which runs along its north side and Remiger Bush Scenic Reserve lies to the north. The surrounding area is characterised by rural-residential lifestyle sites and larger rural blocks, ranging from 1 ha to 22 ha in size.

Background

Council records (NewCore) indicate that the site has been the subject of landuse consents for installation of a bore by drilling from 160m to 230m for the extraction of groundwater for stock and domestic supply.

A historical subdivision consent also affected the site creating 2 in-situ rural -residential lots via protection of bush in the north-east of the site, but this is understood to be completed.

Reasons for the application(s)

The relevant operative plan and proposed plan provisions

In assessing the application, the relevant plans are:

- Auckland Unitary Plan (Operative in part) (AUP(OP)) 15 November 2016, and
- Auckland Council District Plan (Rodney Section) (ACDP).

The decisions version of the (then) proposed Auckland Unitary Plan was notified on 19 August 2016, with the appeal period closing on 16 September 2016. On 15 November 2016 the Auckland Unitary Plan was made operative in part under section 160 of the Local Government (Auckland Transitional Provisions) Act 2010 and clause 20 of Schedule 1 to the Resource Management Act 1991 (RMA).

Consequently, the relevant provisions requiring consideration are:

- those provisions of the AUP(OP) that are not subject to appeal and which became operative on 15 November 2016
- those provisions of the AUP(OP) that are identified as subject to appeal and therefore remain proposed plan provisions, and
- the relevant provisions of the ACDP that remain operative as a consequence of the appeals against certain provisions of the AUP(OP).

The task of identifying the relevant provisions as described above requires individual analysis of the provisions of the AUP(OP), the relevant appeals, and the ACDP provisions, within the context of the specific resource consent application.

In this instance, there are unresolved appeals related to rural subdivision provisions within the AUP(OP). This includes appeals to both rules and objectives and policies. In particular these relate to the rural subdivision provisions where additional titles can be created based on the environmental mitigation subdivision options provided in the plan.

The subdivision option within the AUP(OP) which remains subject to appeal and is most relevant to this application is 'In-situ subdivision creating additional sites through protection of indigenous vegetation identified in the Significant Ecological Area Overlay'. The Environment Court has released decisions on these AUP(OP) appeals (13/6/18) and this sets out that further work is required before the AUP(OP) rules can be considered operative. This decision has been appealed but not yet heard at the High Court. As such most weight remains with the legacy plan.

Accordingly, resource consents are needed for the following reasons:

Subdivision consents (s11) – SUB60311807

Auckland Council District Plan (Rodney Section)

The site is zoned General Rural under this plan. The application seeks subdivision based on the protection of bush areas, which is controlled by the overarching rule 7.14.3.2. In relation to these provisions the following is noted:

- The application proposes to create five rural-residential sites, based on the protection of 52.37ha of native bush. This has been assessed as meeting the criteria of Appendix 7B

(rule 7.14.3.2.2). This in excess of the bush required to be protected by rule 7.14.3.2.1(b) to create 5 sites. In this regard Rule .14.3.2.5 is also met.

- The bush area will remain on the parent site. Rule 7.14.3.2.3 is met.
- The bush will be protected to meet the requirements of rule 7.14.3.2.4.
- Lot 1 is smaller than the minimum site size identified in rule 7.14.3.2.6, being 0.84ha. This does not relate to topographical or geotechnical constraints nor improved protection of the natural features.
- 5 sites will use the new right of way (EA, EE). This meets rule 7.14.3.2.7.
- Due to the non-compliance with the site size noted above, the application is a **Non-Complying Activity** pursuant to rule 7.14.1.3(a), as it does not comply with a requirement for the particular subdivision type.

The application also includes a boundary relocation between the parent site and Lot 5 DP 198556, resulting in Lot 8. This is managed via rule 23.8.15. The application is consistent with these rules and is a **restricted discretionary activity.**

Auckland Unitary Plan (Operative in part)

The site is zoned Rural Production under this Plan. Consent is required under this document for the following reasons:

- E39.4.1(A8)- Parts of the eastern area of the site are included in the 1% annual exceedance probability floodplain. Under E39.4.1 (A8) subdivision of land within such a natural hazard area is a **Restricted Discretionary Activity.**
- E39.4.1(A4)- Boundary adjustments not exceeding 10 per cent of the original site area and meeting Standard E39.6.3.2- **Controlled Activity.**
- E39.4.2(A17)- In-situ subdivision creating additional sites through protection of indigenous vegetation identified in the Significant Ecological Areas Overlay not complying with Standard E39.6.4.4. Some of the bush proposed for protection is located within the SEA. In this case however the relevant Standards are not met. This is detailed below. **Non- Complying Activity**.
    - E39.6.4.4(1)- The bush is not all identified within the SEA overlay, more than 3 lots will be created in- situ (although the "entitlement" in relation to the area of bush is met for 5 sites), a 20m buffer around the bush is not proposed, one site is less than 1ha in size).

    E39.4.2(A27)- Any other subdivision not provided for in Tables E39.4.1 or E39.4.2 (In situ subdivision protected bush that is not identified in the SEA overlay)- **Non-Complying Activity**.

Therefore, overall under this document the proposal must be assessed as a **Non-Complying Activity.**

3. Status of the applications

The appropriate practice is to consider the applications together if there is an overlap between: the consents required; the matters over which the plan(s) has/have limited its discretion; the effects of the activities; and whether consideration of one would likely affect the outcome of another. In this instance the consents required overlap and are considered together as a non-complying activity overall.

4. Public notification assessment (sections 95A, 95C-95D)

Section 95A specifies the steps the council is to follow to determine whether an application is to be publicly notified. These steps are addressed in the statutory order below.

Step 1: mandatory public notification in certain circumstances

No mandatory notification is required as:

- the applicant has not requested that the application is publicly notified (s95A(3)(a))
- there are no outstanding or refused requests for further information (s95C and s95A(3)(b)), and
- the application does not involve any exchange of recreation reserve land under s15AA of the Reserves Act 1977 (s95A(3)(c)).

Step 2: if not required by step 1, public notification precluded in certain circumstances

The application is not precluded from public notification as:

- the activities are not subject to a rule or national environmental standard (NES) which precludes public notification (s95A(5)(a)), and
- the application does not involve one or more of the following activities exclusively: a controlled activity; a restricted discretionary or discretionary activity for a residential activity (as defined in s95A of the RMA) or a subdivision; a boundary activity; or a prescribed activity (s95A(5)(b)).

Step 3: if not precluded by step 2, public notification required in certain circumstances

The application is not required to be publicly notified as the activities are not subject to any rule or a NES that requires public notification (s95A(8)(a)).

The following assessment addresses the adverse effects of the activity on the environment, as public notification is required if the activity will have or is likely to have adverse effects on the environment that are more than minor (s95A(8)(b)).

Adverse effects assessment (sections 95A(8)(b) and 95D)

Effects that must be disregarded

Effects on persons who are owners and occupiers of the land in, on or over which the application relates, or of land adjacent to that land

The council is to disregard any effects on the land in, on, or over which the activity will occur, and on persons who own or occupy any adjacent land (s95D(a)). The land adjacent to the subject site is:

- 11 Remiger Road, Puhoi.
- 51 Remiger Road, Puhoi.
- 53 Remiger Road, Puhoi.
- 53a Remiger Road, Puhoi.
- 79 Remiger Road, Puhoi.
- 81 Remiger Road, Puhoi.
- 86 Remiger Road, Puhoi.
- Lot 4 DP 198557, Remiger Road Puhoi 0873.
- Allot 205 SO 55843, Remiger Road Puhoi 0873 (Open Space – Conservation Zone).
- Lot 1 DP 94244, Ahuroa Road Puhoi 0873 (Open Space – Conservation Zone).
- Lot 1 DP 179794, Tunnel Road Puhoi 0873 (Allot 54A Psh Of Puhoi SO 6988, Pt Allot 30 Psh Of Puhoi SO 850, Pt Allot 31 Psh Of Puhoi SO 850, Allot 32 Psh Of Puhoi SO 850, Allot 35 Psh Of Puhoi SO 850, Pt Allot 36 Psh Of Puhoi SO 850, Lot 1 DP 179794).

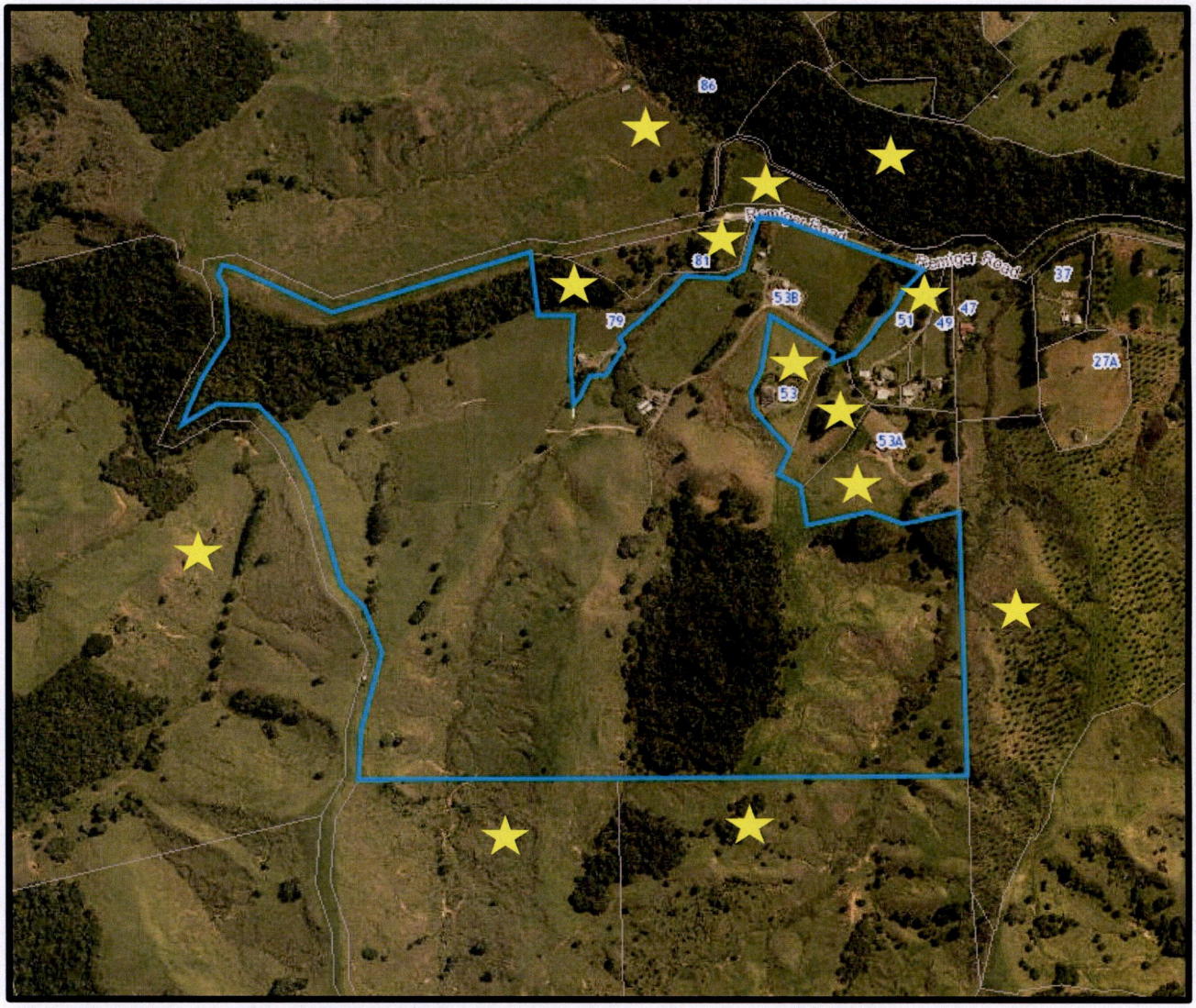


Figure 4: Application site and adjacent sites (marked with yellow stars)

Any effect on a person who has given written approval to the application

No person has provided their written approval to the application.

Effects that may be disregarded

Permitted baseline

The permitted baseline may be taken into account and the council has the discretion to disregard those effects (s95D(b)). In this case the permitted baseline has limited relevance, as no subdivision is permitted. Accessory buildings could be established as permitted activities.

Assessment

Receiving environment

The receiving environment beyond the subject site includes permitted activities under the relevant plans, lawfully established activities (via existing use rights or resource consent), and any unimplemented resource consents that are likely to be implemented. The effects of any unimplemented consents on the subject site that are likely to be implemented (and which are not being replaced by the current proposal) also form part of this reasonably foreseeable

receiving environment. This is the environment within which the adverse effects of this application must be assessed.

Adverse effects

Rural Character & Amenity

The application will result in the creation of 5 new rural- residential sites and the alteration of the size of an adjoining site (via boudanry adjustment).

The boundary adjustment will see Lot 8 increase from 1.1705ha to 1.24ha (an increase of 5.9%), being a small area between the formed driveway (existing northern site boundary) and the existing site boundary. This change will not be noticeable in the immediate or wider environment, and adverse character and amenity effects will be less than minor.

Lots 1-5 are new sites and range in size from 0.84ha to 2ha. These sites are clustered together near the road while the remainder of the site will remain largely free of buildings, and in pasture and natural features. This clustering assists in reducing potential rural character effects, and also assists in rural productive use of the site and reduces the potential for reverse sensitivity related to this use.

A number of rural- residential sites are located adjacent to Remiger Road and Ahuroa Road further to the east. This type of ribbon development is common in a rural environment and can significantly impact on rural character and related amenity. In this case, some of the proposed sites (Lots 1-2) do front Remiger Road but some sit further back. Originally it was thought that Lots 3-5 were proposed to use the existing access from Remiger Road, with easements suggested. This right of way also provides access to Lot 8, Lot 4 DP 198557 and 53a Remiger Road. The sharing of driveways and crossings minimising the proliferation of crossing and letterboxes being spread along a road, which is often the first indication of additional residential use. However it has now been clarified that a new right of way is proposed in the western part of the site, easement Areas EA and EE. This has been queried with the applicant, as sharing of accessways would be the preferred approach. Myles Goodwin, for the applicant, has confirmed that a new right of way was considered a better option than retrofitting and upgrading the existing right of way (Area B). It is likely that future development potential of the site and any upgrading of ROW's required as part of that has also been a factor.

To address potential character effects associated with the proliferation of accesses and crossings, the applicant has agreed to undertake landscaping up the side of right of way EA and EE. This would reduce its visibility in the immediate environment. While not an ideal outcome, given the low traffic expected on this road, the very gently sloping nature of the land (and as a result it not being highly visible) this is considered to create adverse effects that are at most minor.

Lots 1 and 2 were originally proposed to have direct access from Remiger Road, although both sites directly adjoin the right of way easement areas. It is unclear why these sites cannot also use the right of way, but the applicant's preference was that they obtain access from Remiger Road. It is likely that future subdivision of the balance land is proposed; if future lots also used the ROW a higher standard of formation may be required (due to the total number of lots serviced). Lots 1 and 2 also using the ROW would assist in reducing the number of crossings and associated driveways, which as noted above can have an impact on the rural character of an area (especially in a cumulative sense as is the case here). It is also noted that the proposed

Lots 1 and 2 land area is open, in pasture and not screened from the road; Lots 1 and 2 will be the most visually prominent part of the development when viewed from the road. Potential character and amenity effects in this regard require careful consideration, including in a cumulative sense given the ribbon development already existing in the immediate area.



Figure 5: View over Lots 1 and 2 from Remiger Road

The northern parts of Lots 1 and 2 also contains areas of floodplains, which would require consideration in the construction and operation of a driveway and crossing. However, this is a wider issue, with the floodplain being located within or adjacent to Remiger Road and Ahuroa Road and is required to be assessed in the context of the existing environment (Council's Development Engineer has not raised any fundamental concerns in this regard). The applicants planner has noted that if a private access on Lots 1 and 2 were flooded, the road would be flooded to a greater degree as its located on a lower contour. This is agreed.

For the above reasons the applicant has offered that Lot 1 obtain access via the new crossing and initial part of right of way EE (rather than directly from the road as originally proposed), while Lot 2 will access directly from Remiger Road. Additional landscaping has also been offered on Lots 1 and 2 to address potential character and amenity (including cumulative) effects. The aim of this planting is to reduce the visibility of buildings and site access on Lots 1 and 2 from public locations (in particular the road) and assist in reducing potential cumulative effects on rural character and amenity, and to assist in locating the buildings and driveways in a more vegetated landscape. This will require planting on the wider site not only in close proximity to the buildings themselves. This is concluded to be sufficient to ensure that adverse effects will be at most minor.

Development on Lots 4 and 5 will sit behind areas of vegetation, existing buildings and further back from the road. The contour here is flat to gently rolling; while development on these sites may be visible from some public locations, it will not dominate the landscape and is likely to be noticeable for only short periods of time.



Figure 6: General contour over Lots 4 and 5

The building platform on Lot 3 is more elevated, on sloping land. The area surrounding it is typically more steeply sloping. While elevated, the site is not part of a ridgeline (being approximately 40m below the ridge to the south). It will be visible but will not dominate the landscape.

As noted above, Lots 1 and 2 are clearly visible from the road. The sites are in pasture, gently sloping towards Remiger Road. Vegetation within Areas CX does provide a degree of screening when the land is viewed from the east. It is also acknowledged that use of Remiger Road is somewhat limited, as it is not a high order road and does not provide access to other areas (with the formation ceasing just past the application site). Irrespective of this, there is a legal road to the north, and this could be formed in the future.

Development of Lots 1 and 2 will be easily visible to anyone using Remiger Road and from some nearby sites. Given the development existing in this location, it is considered appropriate to provide a degree of screening on the site, to allow buildings to sit more comfortably into this landscape and be a less dominating feature. The planting detailed above will assist in reducing effects in this regard also.

The smaller size of Lot 1 is brought about by the land area available, the location of the driveway and the presence of existing buildings. The buildings are used in association with the farming activities, and it is reasonable and practical that they remain on the balance land. The driveway is also proposed to be used for access to the lots, and as such it forms a reasonable barrier to new lot boundaries. The area of Lot 1 could be amended in a contrived manner to meet the 1ha minimum site size, but this is unlikely to impact on the way the land is used or have any positive impact on character or amenity. The site is of a suitable size to enable residential development and the retention of rural character (when considered in association

with areas on other sites and on the balance site). Adverse effects associated with this site size are concluded to be less than minor.

Adverse character and amenity effects, including cumulative effects, are concluded to be no more than minor.

Ecological Effects

The application is based on the protection of bush areas, being Areas CP (1.2ha), CQ (0.1ha), CR (0.07ha), CS (6.4ha), CT (1.7ha), CU (34.8ha), CV (6.7ha), CW (1.4ha). Riparian margins within Lots 2, 4 and 5 will also be protected (Areas CO, CX, CY, CZ and Z).

Of the bush areas, only Area CU is identified in the AUP(OP) as SEA. There are other SEA areas on the site not proposed for protection; these may form part of a future subdivision application[1]. This issue has been raised with the applicant, who has opined that the bush within the areas proposed for protection are of the same quality as Area CU and the other SEA areas on the site. Council's Ecologist, Mr Jamie Mackay (Wildlands), agrees with this. The bush areas proposed for protection represent the entire bush in that particular area (i.e. the wider bush areas are not split up). The areas for protection are logical and practical, and separated from the other SEA areas on the site. Given the above, it is considered acceptable in this case that the SEA areas not be protected on the site.

Bush Areas CP- CW have been assessed by the applicant's ecologist, Cato Bolam Consultants, and this has been peer reviewed by Wildlands (Mr Jamie MacKay) for the Council. The bush areas are described below (page 2 of Cato Bolam assessment, ref 40320)

Scheme Ref	Area	SEA?	Description
CU, CL, CM, CN, CO, CP, CQ, CR	37.23ha	Yes	Mature podocarp-broadleaf forest with a grazed understorey, with taraire forest on the lower slopes, above the main stream flowing west to east across the property.
CT and CS	8.1ha	No	Mature podocarp-broadleaf forest with a grazed understorey, with regenerating kanuka forest around watercourses and on the outer edges.
CV	6.7ha	No	Mature podocarp-broadleaf forest with stock proof ig understorey.
CW	1.4ha	No	Mature podocarp-broadleaf forest with a grazed understorey. Closely associated with Area CV.

Cato Bolams conclude that the bush meets the quality thresholds set out in Appendix 7C of the ACDP(RS), being the dominant planning document at the time the application was lodged. These rules still have relevance, given the status of the appeals as noted above. In addition, the applicant's ecologist also considers that the non- SEA bush proposed for protection, is of the same quality as the areas identified as SEA. The application is therefore concluded to also be consistent with the outcomes anticipated by the AUP(OP) in terms of vegetation quality.

[1] It is noted that the amount of bush proposed for protection meets the thresholds set out in both the ACDP(RS) and the AUP; the remaining bush on the site is not required to be protected under the ACDP (RS) which is the dominant document at the time of assessing this application. Rule E39.6.4.4 (11)(a) of the AUP requires protection of all the indigenous vegetation and buffer existing on the site at the time the application is made, even if this means protecting vegetation or a wetland larger than the minimum qualifying area. However, this rule is subject to appeal and therefore more weight is being given to the provisions in the ACDP (RS).

The bush areas are to be fenced, weed and pest control undertaken, and the areas legally protected via a consent notice.

Peer review by Mr Jamie MacKay has confirmed that the bush areas meet the ACDP(RS) threshold, and that they are of similar quality to the areas identified as SEA. The bush is therefore concluded to be worthy of protection.

In addition to the above, riparian areas within Lots 1, 4 and 5 (called Areas CO, CX, CY and CZ) are also proposed for planting and protection. These will total 0.9ha. Area CO on Lot 5 was added following a s92 RMA request from Council's Ecologist; the applicant accepted that these areas were "watercourse" and should be protected.

A planting plan has been provided, and this is concluded to be appropriate. The areas will also be legally and physically protected, and subject to weed and pest control. This protection and planting is undertaken to meet rules of the ACDP(RS), which still have some limited weight. The planting is also consistent with high level objectives and policies of the AUP(OP) which seek protection of riparian areas to assist in managing stormwater and ecological values. This protection is supported.

Council's Ecologist has also queried a potential watercourse in Lot 3, suggesting it is an intermittent watercourse while the applicant's agent originally suggested it was a "seepage". The applicant's agent has made the following points in relation to this area and revisited the site to specifically assess the subject area (see also letter from Cato Bolam Consultants dated 11/9/18):

- There is no defined stream channel,
- Following the additional site visit, the agent has opined that the area is an ephemeral watercourse or wetland, and fails to meet at least three of the AUP(OP) intermittent stream criteria (which is required by the AUP(OP) for it to be classified as an intermittent stream). Specifically, there are no natural pools, no surface water more than 48 hours after a rain event, there is rooted terrestrial vegetation established across the cross- sectional width of the channel, there is no organic debris on the floodplain and there is no evidence of a substrate sorting process.
- The areas are also in part dug drains; the ACDP(RS) rules do not apply to farm drains. The area has questionable naturalness given the straight nature and surrounding wet ground as well as modified hydrology.
- The area will not be degraded by the application, and mitigation is not required to offset effects of this development.

This issue has been discussed with both Council's Ecologist and the Team Leader Resource Consents, Mr Erik Oothuizen. It is understood that riparian planting is, at the present time, considered in more detail if an application is based on provisions of the legacy plan. This is in part because rules of the legacy plan required protection of riparian areas as part of subdivision whereas the AUP does not.

It is agreed that protection of this area is not specifically required to mitigate adverse effects of the development. It is also questionable if the area would have required protection under the legacy plan, given the above points regarding classification of the watercourse. Further, it is understood that rule 7.14.2.5 of the ACDP(RS) is not subject to the outstanding appeal, and

there is little (if any) potential for this rule to be re-introduced into the AUP. Given these factors, it is considered that the protection of Areas CO, CX, CY and CZ is a satisfactory compromise position.

Adverse ecological effects will be less than minor.

Rural Productivity

The application will see the removal of 5.97ha of land from the larger farming unit. While this land could still be used for production purposes, this will be limited to hobby type farming given the size of the individual sites. The land to be removed is in pasture, gently sloping and located close to the road, the existing driveway within the site and farm buildings. These factors are expected to be useful in production terms. The land area does however contain overland flowpaths and areas of flooding (refer to assessment below).

The site contains a mixture of Class 3 and Class 6 soils, with the higher class (considered to represent "Prime" soils) being located where Lots 1-5 are proposed, and further to the south.

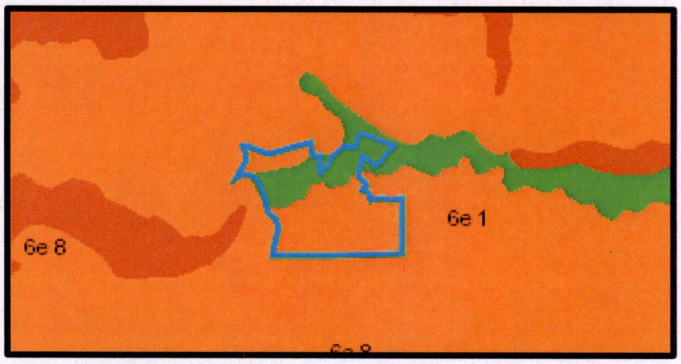


Figure 7: Application site and soil classifications

The application will have an impact on productive potential of the land, but this is not concluded to be significant. The balance land area, comprising Lots 6 and 7, will be over 290ha in size. Some of this land will be occupied by areas proposed for protection, and the use of other parts are also affected by its topography. Irrespective of these matters, the site remains large and is expected to easily be useable for primary production purposes. The land removed via the creation of Lots 1-5 represents only 2% of the parent site area; in this context adverse impacts on primary production are concluded to be less than minor. Further, the boundary locations take into account the location of existing farm infrastructure, ensuring that these remain on the balance sites.

Natural Hazards

The application site contains various floodplains and overland flow paths, some within the proposed rural-residential lots. The location of these identified features on Council's GIS mapping is shown in Figure 8 below.



Figure 8: Application site with 1% AEP floodplain and overland flowpaths

The floodplain primarily falls outside the land area within proposed Lots 1, 3 and 8. The plain extends along the western boundary of Lots 4 and 5, comprising 20% or 0.2ha of each 1 ha site. With regards to Lot 2, the flood plain covers an area equating to approximately a third of the 1.13ha site at its northern end.

Importantly the specified building areas on all Lots 1-5 as shown on the scheme plan are not within the floodplain area. It is proposed that the overland flow path and the riparian margins are to be protected on Lots 2, 4 and 5 by planting and fencing as part of this application.

Council's Development Engineer has not highlighted any areas of concern with respect to flooding or overland flowpath considerations in his report, noting that the proposed building platforms are away from them. Flooding of the access and the road have been specifically discussed with Council's Development Engineer. Proposed right of way EE and EA are expected to be outside the floodplain, but the road is within it. This means that during the times of flood, people will either not be able to access their site or will be stranded on the site for a certain period of time. This situation would affect a number of residents, given the extent of the flooding. Council's Development Engineer has not raised any concerns in relation to this, but it is considered prudent to utilise a consent notice to ensure people are aware of this situation and plan accordingly (via an Emergency Management Plan).

A geotechnical investigation report (Engineering Geology Limited, ref: 8447, 14th September 2017) has been submitted with the proposal. In this a Building Restriction Line is proposed as indicated on drawing 8447-1 for Lot 3, wherein a setback of a minimum of 10m from the top of the bank along the western and southern side of the ridge is proposed. This positions the 1000m^2 building platform on the eastern slopes of the ridge, away from the existing head scarp. At this location there is risk of ongoing soil creep, so that it is considered that all foundations should be fully pile supported. Conditions in this regard are suggested and have been agreed to.

Matters related to geotechnical/stability issues have also been evaluated by Council's Development Engineer. In his assessment the Development Engineer states:

"Category B soils – slightly expansive. Geotech report identified category M soils in terms of AS2870:2011. Site away from a northern allochthon overlay. Proposed building platform sites ranging from moderately sloping (1:5.5) to relatively flat."

Mr Uy has not raised concerns regarding the reduced size of the building platform on Lot 3. He also recommends (via a consent notice) that building sites on the lots are fixed in the location assessed and requiring future buildings to be subject to the requirements of the Engineering Geology's geotechnical report.

"(building restrictions) Any buildings erected on the building sites identified on the plan shall be subject to the requirements of the report prepared by Engineering Geology Ltd., ref: 8447, dated 14 September 2017, and any subsequent reports."

The applicant has accepted these conditions.

Overall taking account of the above assessment and the review of these matters by Council's Development Engineer, it is considered potential adverse effects related to natural hazard issues will be less than minor.

Servicing

The new rural-residential sites Lots 1-5 will be able to be fully serviced in relation to wastewater, water supply, stormwater, electricity and telecommunication services. Due to the rural setting the wastewater, water supply and stormwater issues will be dealt with via on-site methods as no reticulation is available in the area.

In relation to wastewater issues Council's Development Engineer has confirmed that an on-site effluent treatment and disposal system will be required. He is satisfied the sites are sufficiently sized to accommodate this and as per usual practice the specific details and design of this system will be scrutinised during the building consent process to develop the lots.

The proposed stormwater management system for the site is detailed in the Hydrology Report submitted with the application. Roof runoff from dwellings on lots 1-5 will flow to reuse tanks and the overflow will be piped for sheet flow discharge over pasture. Driveway / paving runoff on lots 1-5 will bypass tank system and be piped to a level spreader dispersal device.

With regard to stormwater matters the Development Engineer has recommended a condition of consent that will require:

"All stormwater from buildings and paved areas on Lots 1-5 shall be collected and disposed of in accordance with the report prepared by the Stormwater Hydrology Report prepared by Cato Bolam Consultants, ref: 40320, dated 17 October 2017, unless otherwise approved by Council. The collection and disposal system shall be installed in conjunction with the erection of any buildings and shall thereafter be maintained to the specified capacity and standard in perpetuity."

In relation to water supply, as would be expected this will be dealt with through the use of rainwater collections tanks. In his assessment Council's Development Engineer raises no concern with this.

A consent notice has also been recommended by the Council Development Engineer with respect to firefighting water supply, which in terms of volume, pressure, flow and proximity of water tank location must be in accordance with the relevant New Zealand Fire Service code of practice (NZS4509:2008).

Requirements for electricity and telecommunications supply to service the sites can also readily be included in consent conditions. The Development Engineer has included a recommendation for consent conditions to provide for an electricity network to provide electric supply and a telecommunication network supplier to provide telephone services supply, both by underground means.

Subject to the imposition of conditions in the various areas relating to the servicing of the proposed lots and which largely result from the Development Engineer's review of these matters, it is considered the lots can be serviced in all necessary areas and adverse effects relating to this matter will be less than minor.

Traffic, Transportation & Access

The sites will be accessed from Remiger Road. This is formed to a rural metal standard. The proposal will result in an additional 50 movements per day onto Remiger Road and likely onto Ahuroa Road. Councils Development Engineer has not raised any concerns with this additional loading on the surrounding roading network.

The sites range in size from 0.84ha to 2ha, with the balance site being much larger. All sites are easily able to accommodate vehicle parking and manoeuvring.

Access into the site will be via two methods; via right of way easements and directly from Remiger Road. Lots 1, 3, 4 and 5 will obtain access via a new right of way from Remiger Road (Area EE, EA, EB and ED) over Lot 6. Lot 2 is proposed to obtain access directly from Remiger Road, and Lot 8 will continue to get access via the existing right of way (Area B). All access will be formed to Council Standards. Council's Development Engineer has not raised any traffic concerns with the access proposed.

Adverse environmental effects related to traffic and transportation are concluded to be less than minor.

Cultural and Heritage Effects

53B Remiger Road does not contain any cultural or heritage items as noted in the AUP(OP) or any items under the HNZ listings. The site is however within a Statutory Acknowledgement Area for Puhoi River, the Settlement Party being Ngati Manuhiri. It is understood that details of the application have been provided to Ngati Manuhiri as part of Councils usual consultation process; no concerns have been raised to date.

Due to the rural setting the wastewater, water supply and stormwater issues will be dealt with via on-site methods as no reticulation is available in the area. Various floodplains and overland flow paths are contained within the site, but development on the sites can be suitably serviced, and no other impacts on water quality are anticipated as a result of this application.

Adverse cultural and heritage effects will be less than minor, and no iwi groups are considered to be adversely affected.

Adverse effects conclusions

Taking into account the assessment provided above including the assessment in specialist areas, which is adopted and the recommendation made which can readily be imposed as consent conditions (which the applicant has agreed to), it is considered adverse effects relating to the above matters will be no more than minor.

Step 4: public notification in special circumstances

If an application has not been publicly notified as a result of any of the previous steps, then the council is required to determine whether special circumstances exist that warrant it being publicly notified (s95A(9)).

Special circumstances are those that are:

- exceptional or unusual, but something less than extraordinary
- outside of the common run of applications of this nature, or
- circumstances which makes notification desirable, notwithstanding the conclusion that the adverse effects will be no more than minor.

In this instance I have turned my mind specifically to the existence of any special circumstances and conclude that there is nothing exceptional or unusual about the application, and that the proposal has nothing out of the ordinary run of things to suggest that public notification should occur.

Public notification conclusion

Having undertaken the s95A public notification tests, the following conclusions are reached:

- Under step 1, public notification is not mandatory.
- Under step 2, there is no rule or NES that specifically precludes public notification of the activities, and the application is for an activity other than those specified in s95A(5)(b).
- Under step 3, public notification is not required as the application is for an activity that is not subject to a rule that specifically requires it, and it is considered that the activity will have or is likely to have adverse effects on the environment that are no more than minor.
- Under step 4, there are no special circumstances that warrant the application being publicly notified.

It is therefore recommended that this application be processed without public notification.

5. Limited notification assessment (sections 95B, 95E-95G)

If the application is not publicly notified under s95A, the council must follow the steps set out in s95B to determine whether to limited notify the application. These steps are addressed in the statutory order below.

Step 1: certain affected protected customary rights groups must be notified

There are no protected customary rights groups or customary marine title groups affected by the proposed activity (s95B(2)).

In addition, the council must determine whether the proposed activity is on or adjacent to, or may affect, land that is subject of a statutory acknowledgement under schedule 11, and whether the person to whom the statutory acknowledgement is made is an affected person (s95B(3)). Within the Auckland region the following statutory acknowledgements are relevant:

- Te Uri o Hau Claims Settlement Act 2002
- Ngāti Manuhiri Claims Settlement Act 2012
- Ngāti Whātua Ōrākei Claims Settlement Act 2012
- Ngāti Whātua o Kaipara Claims Settlement Act 2013
- Te Kawerau ā Maki Claims Settlement Act 2015

The site is not located within a Statutory Acknowledgment Area.

Step 2: if not required by step 1, limited notification precluded in certain circumstances

The application is not precluded from limited notification as:

- the application is not for one or more activities that are exclusively subject to a rule or NES which preclude limited notification (s95B(6)(a)), and
- the application is not exclusively for one or both of the following: a controlled activity, other than a subdivision, that requires consent under a district plan; or a prescribed activity (s95B(6)(b)).

Step 3: if not precluded by step 2, certain other affected persons must be notified

As this application is not for a boundary activity or a prescribed activity, there are no affected persons related to those types of activities (s95B(7)).

The following assessment addresses whether there are any affected persons that the application is required to be limited notified to (s95B(8)).

In determining whether a person is an affected person:

- a person is affected if the activity's adverse effects on that person are minor or more than minor (but not less than minor)
- adverse effects permitted by a rule in a plan or NES (the permitted baseline) may be disregarded, and
- the adverse effects on those persons who have provided their written approval must be disregarded.

Adversely affected persons assessment (sections 95B(8) and 95E)

No persons are considered to be adversely affected by the activities because:

- The application will see the creation of 5 new sites and a minor boundary relocation. The changes brought about by the boundary relocation are of such a minor nature that they will not be noticeable on any adjacent site. The larger change is associated with the creation of Lots 1-5. When viewed from the south and east, development will be obscured by intervening

vegetation (including that adjacent Area CX), topography and other buildings. For example, the hill that Lot 8 is located on will obscure views of Lots 4 and 5 when viewed from the west. Landscaping is also proposed on the site to ensure that character and amenity commensurate to a rural location is maintained. Reasonable separation distances between buildings are also expected to be maintained (given the location of the sites and areas proposed for protection).

- The new right of way access (EA, EE etc) is offset from the site boundary. The use of this is not expected to impact on the amenity of any adjoining site.
- In terms of servicing the proposal has been reviewed by Council's Development Engineer who has indicated subject to conditions in some areas, the new rural-residential sites can be adequately serviced to a sufficient standard. Therefore no adverse effects on adjacent sites are envisaged in this regard.
- Issues with respect to natural hazards have also been reviewed by Council's Development Engineer including related to stability, flooding and overland flowpaths. Taking account of this review, no adverse effects in this regard will be initiated or exacerbated in relation to adjacent sites.

Step 4: further notification in special circumstances

In addition to the findings of the previous steps, the council is also required to determine whether special circumstances exist in relation to the application that warrant it being notified to any other persons not already determined as eligible for limited notification.

Special circumstances are those that are:

- exceptional or unusual, but something less than extraordinary;
- outside of the common run of applications of this nature; or
- circumstances which make limited notification to any other person desirable, notwithstanding the conclusion that no other person has been considered eligible.

In this instance I have turned my mind specifically to the existence of any special circumstances under s95B(10) and conclude that there is nothing exceptional or unusual about the application, and that the proposal has nothing out of the ordinary run of things to suggest that notification to any other persons should occur.

Limited notification conclusion

Having undertaken the s95B limited notification tests, the following conclusions are reached:

- Under step 1, limited notification is not mandatory.
- Under step 2, there is no rule or NES that specifically precludes limited notification of the activities, and the application is for an activity other than those specified in s95B(6)(b).
- Under step 3, limited notification is not required as it is considered that the activity will not result in any adversely affected persons.
- Under step 4, there are no special circumstances that warrant the application being limited notified to any persons.

It is therefore recommended that this application be processed without limited notification.

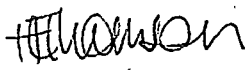
6. Notification recommendation

Non-notification

For the above reasons under section 95A this application may be processed without public notification.

In addition under section 95B limited notification is not required.

Accordingly I recommend that this application is processed non-notified.



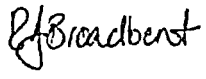
20/11/18

Hannah Thomson
Consultant Planners
Resource Consents

Date

7. Notification determination

Acting under delegated authority, and for the reasons set out in the above assessment and recommendation, under sections 95A and 95C to 95D, and 95B and 95E to 95G of the RMA this application shall be processed non-notified.



22/11/2018

Nicola Broadbent
Team Leader
Resource Consents

Date